

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/15/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005274

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PAQUITA MARIA RENDON	
vs.	
DEFENDANT: NATHANIEL LAUGHLIN KEEVE, ET AL	

NATURE OF PROCEEDINGS: MOTION – AMEND COMPLAINT

RULING

Plaintiff Paquita Rendon’s (“Plaintiff”) motion for leave to amend complaint is GRANTED.

Plaintiff seeks leave to amend her complaint to add a defendant and a cause of action as to a car accident which occurred approximately three years after a trip and fall incident. Plaintiff asserts that the car accident aggravated her neck and other injuries caused by the sprinkler fall. Defendant ABM opposes the request, asserting that such an amendment will cause prejudice.

LEGAL STANDARD

Under Code of Civil Procedure section 473, subdivision (a)(1), the Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding. As judicial policy favors resolution of all disputed matters in the same lawsuit, courts liberally permit amendments of the pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Leave to amend to more clearly state a plaintiff’s theories of liability should be liberally allowed. (*Rainer v. Buena Community Memorial Hospital* (1971) 18 Cal.App.3d 240, 253-254.) Denial is rarely justified unless opposing parties demonstrate unreasonable delay plus prejudice if the motion is granted. A mere showing of unreasonable delay by the plaintiff without any showing of resulting prejudice to defendants is an insufficient ground to justify denial of the plaintiff’s motion. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Prejudice exists where the amendment would require delaying the trial, resulting loss of critical evidence or added costs of preparation, and an increased burden of discovery, inter alia. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Generally, arguments attacking the merits of the proposed amendments do not justify denial of the motion. Courts allow the amendment and then let the parties test the legal

sufficiency in other appropriate proceedings such as a demurrer. (See *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, and *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

A party requesting leave to amend must also comply with California Rules of Court, rule 3.1324. Compliance with the Rules of Court is satisfied by including a copy of the proposed amended pleading, detailing what changes will be made from the previous pleading by stating what allegations are to be deleted or added as compared to the previous pleading including page, paragraph and line number, and attaching a declaration by plaintiff's counsel, as to: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(a)-(b).)

ANALYSIS

Defendant's opposition is based on its claim that joinder of a new defendant regarding an unrelated collision is impermissible under Code of Civil Procedure section 389. These arguments go to the merits of the proposed amendment rather than a showing of unreasonable delay and prejudice. While Defendant may attack the joinder by way of separate motion, it does not factor into this Court's analysis as to whether to allow the amendment.

Plaintiff has met the requirements of California Rules of Court, rule 3.1324 by attaching the proposed amended complaint to counsel's declaration and detailing the changes to the complaint.

Accordingly, the amendment shall be allowed.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/15/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0005317

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALLINA ANDRES

PLAINTIFF: ROBERT C. PLACAK &
ASSOCIATES, INC.

vs.

DEFENDANTS: DEBBY BAKER PAGE
ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

2) MOTION – COMPEL – ANSWERS TO INTERROGATORIES - DISCOVERY
FACILITATOR PROGRAM

RULING

Plaintiff filed motions to compel compliance with document production and further responses to form interrogatories, and for sanctions, which were initially set for hearing on July 8, 2026. The parties then stipulated to move the hearing to July 22, 2026 in part because the parties were working to resolve matters through the Discovery Facilitator. According to Plaintiff, Defendant had agreed to provide supplemental responses.

No further update has been provided. Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

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